

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
LEON CHRISTIAN,

*Plaintiff,*

-against-

THE CITY OF NEW YORK and POLICE OFFICERS JOHN  
DOE #1-2, (the names "John Doe" being fictitious as the true  
names are presently unknown), individually and in their official  
capacity as New York City Police Officers,

*Defendants.*

Index No.: \_\_\_\_\_

Date Purchased: \_\_\_\_\_

## SUMMONS

Plaintiff designates Kings  
County as the place of trial.

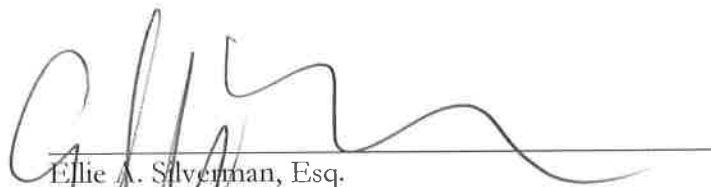
The basis of venue is:  
Place of Occurrence

Plaintiff resides at:  
239-43 148<sup>TH</sup> Avenue  
Rosedale, New York 11422  
County of Queens

-----X  
To the above named Defendant(s):

**You are hereby summoned** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
January 6, 2017

  
Ellie A. Silverman, Esq.  
NOVO LAW FIRM, PC  
*Attorneys for Plaintiff*  
LEON CHRISTIAN  
299 Broadway, 17th Floor  
New York, New York 10007  
212-233-6686  
Our File No. 15-5875

TO:

1. THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X  
LEON CHRISTIAN,

*Plaintiff,*

-against-

Index No.: \_\_\_\_\_

Date Purchased: \_\_\_\_\_

**VERIFIED  
COMPLAINT**

THE CITY OF NEW YORK and POLICE OFFICERS JOHN  
DOE #1-2, (the names "John Doe" being fictitious as the true  
names are presently unknown), individually and in their official  
capacity as New York City Police Officers,  
*Defendants.*

-----X  
Plaintiff **LEON CHRISTIAN** by his attorneys **NOVO LAW FIRM, PC** complaining of  
Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2**  
respectfully alleges, upon information and belief:

**PARTIES**

1. Plaintiff **LEON CHRISTIAN** was, and still is, an individual residing at 239-43 148<sup>th</sup> Avenue, Rosedale, County of Queens, State of New York.
2. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal corporation duly incorporated and existing under and by virtue of the laws of the State of New York.
3. Defendant **THE CITY OF NEW YORK** was, and still is, at all times relevant herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by **NEW YORK CITY POLICE DEPARTMENT**.

4. Defendants **POLICE OFFICERS JOHN DOE #1-2** were, and still are, at all times relevant herein, duly appointed and acting officers, servants, employees and agents of New York City Police Department a municipal agency of Defendant **THE CITY OF NEW YORK**.
5. Defendants **POLICE OFFICERS JOHN DOE #1-2** were, and still are, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as an officers, agents, servants, and employees of Defendant **THE CITY OF NEW YORK** were acting for, and on behalf of, and with the power and authority vested in them by Defendant **THE CITY OF NEW YORK** and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.
6. On January 21, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and the place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on Plaintiff's behalf on the Comptroller of Defendant **THE CITY OF NEW YORK** and that, thereafter, said Comptroller for Defendant **THE CITY OF NEW YORK** refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that, thereafter, and within the time provided by law, this action was commenced.
7. Pursuant to General Municipal Law § 50(h), a hearing was held on December 2, 2016 at the office of a designated agent.

#### **FACTS**

8. Plaintiff **LEON CHRISTIAN** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
9. On or about January 6, 2016, at approximately 2:00 P.M., Plaintiff **LEON CHRISTIAN** was a lawful citizen at or near premises known as My "MY GRAND's" deli and grocery store, located at 291 Pennsylvania Avenue, located in the County of Kings, City of New York and State of New York when he became the victim police retaliation and/or police misconduct.

10. At the time and place of occurrence, Plaintiff **LEON CHRISTIAN** was lawfully on the above-mentioned premises with the express and implied permission of the landlord of the property.
11. At the time and place of occurrence, Plaintiff **LEON CHRISTIAN** was the lawful employee of the abovementioned-premises.
12. Upon information and belief, Mr. Christian had been the lawful employee of the abovementioned location since the year of 2015.
13. Upon information and belief, while Mr. Christian was in the course of his employment and at the above-mentioned date and time, he observed two men trying to force their way inside the shop via back door.
14. Plaintiff **LEON CHRISTIAN** was assaulted, battered including being pushed, shoved and threatened and otherwise became a victim of malicious and sadistic force at the hands of Defendants.
15. Upon information and belief, Plaintiff **LEON CHRISTIAN** witnessed two (2) unidentified men opening the back entrance door, which was an entrance that was not available to the public.
16. Upon information and belief, without announcing or identifying themselves or who they were, without pause and with deliberate indifference to proper procedure and protocol, Defendants **POLICE OFFICERS JOHN DOE #1-2** pushed the door open, forced their way in and shoved pushed and threw Plaintiff to the ground.
17. Upon information and belief, Plaintiff **LEON CHRISTIAN** was thrown, pushed, showed, grabbed and threatened.
18. Upon information and belief, said actions caused injuries to Plaintiff's lower back.
19. Upon information and belief, one of the defendants brought his gun into plain site and pointed it at Plaintiff's face.
20. For an indeterminate amount of time, Plaintiff **LEON CHRISTIAN** was not free to leave the premises because he was being held by Defendants.

21. For an indeterminate amount of time, Plaintiff **LEON CHRISTIAN** did not believe that he was free to leave the premises because he was being held by Defendants.
22. For an indeterminate amount of time, Plaintiff **LEON CHRISTIAN** was forced by Defendants to remain on the ground and not permitted or allowed to stand up.
23. Upon information and belief, while being restrained, while fearing for his life and with a gun pointed to his head, Mr. Christian was asked where “Andrew” was, to which Plaintiff responded that he did not know this person and there was no one there by that name.
24. Upon information and belief, it was only after the above sequence of events that Defendants **POLICE OFFICERS JOHN DOE #1-2** admitted that they are Police Officers and that they made a mistake and exited the premises through the appropriate front door.
25. Upon information and belief, at no point before or during the above-mentioned sequence of events did Defendants **POLICE OFFICERS JOHN DOE #1-2** inform, state, proclaim indicate or identify that they are law enforcement officers.
26. Upon information and belief, Plaintiff **LEON CHRISTIAN** requested their badge numbers, but Defendants **POLICE OFFICERS JOHN DOE #1-2** ignored his requests and left in their vehicle, which was parked in street in the front of the store.
27. Upon information and belief, Plaintiff **LEON CHRISTIAN** called 911 and explained them the situation, but he was disconnected from the call by the 911 operator.
28. Upon information and belief, shortly thereafter, a Lieutenant “Berkovitz” from the 75<sup>th</sup> Precinct called and apologized for the incident explaining, that it was a complete error or “mistake” on their part and that he was “sorry”.
29. Upon information and belief, Lieutenant “Berkovitz” offered Plaintiff **LEON CHRISTIAN** to file in the 75<sup>th</sup> Precinct an official complaint against Defendants **POLICE OFFICERS JOHN DOE #1-2** actions.

30. Upon information and belief, Plaintiff arrived to the 75<sup>th</sup> Precinct same day approximately around 4:00PM, but instead of processing his complaint, he was advised to file a complaint with Civilian Complaint Review Board (CCRB).
31. Upon information and belief, after leaving 75<sup>th</sup> Precinct Mr. Christian went to Emergency Room in Interfaith Medical Center where he received treatment for his lower back pain.
32. Upon information and belief, up until now Plaintiff **LEON CHRISTIAN** suffers from lower back pain and associated injuries.
33. Plaintiff **LEON CHRISTIAN** is an army war veteran with a diagnosis of Post Traumatic Stress Disorder (PTSD).
34. Said police misconduct has caused significant and severe emotional distress and emotional damages.
35. Upon information and belief, following subject incident, up until now Mr. Christian suffers from flashbacks and anxiety attacks on a regular basis.
36. Said police misconduct violated the Civil Rights of Plaintiff **LEON CHRISTIAN**.
37. There is no question that this ordeal has greatly affected him mentally, emotionally and psychologically. Additionally, and as a further result of this ordeal, which was instituted and maintained by Defendants, Plaintiff **LEON CHRISTIAN** has suffered substantial actual damages including and not limited to, legal fees and court costs, expenses of defending the prosecution, extreme emotional distress, aggravation, humiliation, loss of enjoyment of life, loss of reputation, sleeplessness, headaches, nightmares, further fear of arrest and other incidental and consequential damages, which were reasonably foreseeable by Defendants.

**AS AND FOR A FIRST CAUSE OF ACTION**  
**DEPRIVATION OF RIGHTS UNDER THE**  
**UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983**  
**BY THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2**

38. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

39. By their conduct and actions in pushing, showing, assaulting, battering, failing to intercede on behalf of Plaintiff and in failing to protect him from the unjustified and unconstitutional treatment he received at the hands of Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** acting with animus, and under color of law and without lawful justification, intentionally, maliciously, and with deliberate indifference to and/or a reckless disregard for the natural and probable consequences of his acts, caused injury and damage in violation of Plaintiff's due process clause and constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
40. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured

**AS AND FOR A SECOND CAUSE OF ACTION**  
**DERELICTION OF DUTY. DELIBERATE INDIFFERENCE**  
**and FAILURE TO INTERCEDE BY DEFENDANTS THE CITY OF NEW YORK and**  
**POLICE OFFICERS JOHN DOE #1-2**

41. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
42. Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** were under a duty of safeguarding the public and ensuring the appropriate execution of Defendant's role.
43. Plaintiff duly relied on Defendants' fulfillment of their New York City Policing duties.
44. Defendants had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence.
45. At the time of the incidents, Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** were observing and aware of the wrongful acts against Plaintiff.
46. At the time of the incident, Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** neglected to intervene on Plaintiff's behalf in dereliction of their duty to Plaintiff and in deliberate indifference to Plaintiff's well-being.

47. Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
48. Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in Defendants' presence by assault, abuse and punishments.
49. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A THIRD CAUSE OF ACTION**  
**INTENTIONAL INFLICTION OF EMOTIONAL**  
**HARM AND/OR DISTRESS**

50. Courts have held that continuous and coercive harassment *can* establish an IIED cause of action. *Alexander v. Unification Church of America*, 634 F.2d 673, 678–679 (2d Cir.1980) (filing of harassing lawsuits, constant surveillance, patrolling of plaintiffs' homes); *Green v. Fischbein Olivieri Rozenholz & Badillo*, 119 A.D.2d 345, 507 N.Y.S.2d 148 (1st Dep't 1986)(baseless eviction proceedings against plaintiff-tenant by landlord, disruption in services, deterioration of living conditions, interference with mails, verbal abuse of plaintiff and his guests). *But see, Gay v. Carlson*, 60 F.3d 83, 89 (2d Cir.1995) (finding plaintiff had not established an IIED claim where “[a]ll that plaintiff alleges that any of the defendants has done is lodge official complaints about plaintiff's conduct or discuss the basis of those complaints with others.”).
51. A timely Notice of Claim was filed with the City of New York.
52. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
53. Under the color of state law, Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** intentionally caused continuous emotional distress and damage to

Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of continuous emotional distress emotional injury to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. Upon information and belief, Defendants committed multiple acts against Plaintiff, which invaded his interests and inflicted injuries upon him throughout all stages of investigation, the continuous detention and the hearings, and trials, which cumulatively amounted to intentional infliction of emotional harm and/or distress.

55. The emotional harm and/or distress continue to present day.

56. The conduct transcended the bounds of human decency. The conduct amounted to more than the emotional harm that is encompassed within the other claims.

57. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.

58. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

#### **AS AND FOR A FOURTH CAUSE OF ACTION** **NEGLIGENCE**

59. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

60. Upon information and belief, a Notice of Claim was timely filed against the City.

61. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.

62. Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** negligently caused injuries and otherwise damaged Plaintiff. The acts and conduct of Defendant were the direct and proximate cause of injury to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

63. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A FIFTH CAUSE OF ACTION**  
**VIOLATION OF PLAINTIFF'S RIGHTS PURSUANT TO**  
**THE COMMON LAW OF THE STATE OF NEW YORK**  
**VIA BATTERY AND ASSAULT**

64. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
65. A timely Notice of Claim was filed by Plaintiff.
66. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
67. Defendant **THE CITY OF NEW YORK** is vicariously liable to Plaintiff for the individual Defendant's **POLICE OFFICERS JOHN DOE #1-2**, common tort of battery and assault via the principle of *respondeat superior* and that New York CPLR § 1601 does not apply pursuant to the exception provided by CPLR § 1602(1)(b).
68. Defendants committed a battery on Plaintiff as described above, including but not limited to pushing, shoving and pointing gun to Plaintiff's face.
69. The above-mentioned abuse was harmful, un-consented, and unjustified and in so doing, Defendant, violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
70. That on the aforementioned time and place, Defendants committed the tort of assault against Plaintiff by causing him to be in apprehension of imminent, harmful and offensive touching and in so doing, Defendants violated the laws and Constitution of the State of New York and otherwise violated Plaintiff's rights under New York Law.
71. That by reason of the battery and assault, Plaintiff was harmed physically and emotionally, all while unlawfully and illegally detained, and that Plaintiff was otherwise harmed as a result of the Defendant's actions
72. The act of ignoring the medical representatives' directives and denying proper medical treatment amounted to a battery.
73. That by reason of the aforesaid committed by Defendants, Plaintiff suffered and continues to suffer physical and emotional injury and that he was otherwise damaged.

74. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered a loss of quality and/or enjoyment of life, economic injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A SIXTH CAUSE OF ACTION**  
**FALSE IMPRISONMENT**

75. Plaintiff **LEON CHRISTIAN** repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
76. By the actions described above, Defendant **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** caused Plaintiff to be falsely imprisoned without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff **LEON CHRISTIAN** and violated Plaintiff's statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.
77. The Defendants kept Plaintiff **LEON CHRISTIAN** within boundaries set up by Defendants themselves, by holding Plaintiff to the ground and not permitting him to be free from their hold, thereby creating physical obstacles that Plaintiff **LEON CHRISTIAN** could not get past.
78. The Defendants clearly intended to keep Plaintiff **LEON CHRISTIAN** within those boundaries by holding Plaintiff on the ground and pointing a gun at his head/face.
79. The boundaries created by Defendants involved both physical and mental/emotional pressure.
80. The boundaries actually kept Plaintiff **LEON CHRISTIAN** from leaving because he was not able to get free and also he was terrified by the threat of the gun pointed at him.
81. Plaintiff **LEON CHRISTIAN** knew he was being imprisoned.
82. A timely Notice of Claim was filed on behalf of Plaintiff.
83. **THE CITY OF NEW YORK** is responsible based on the theory of *respondeat superior*.
84. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was

otherwise damaged and injured.

**AS AND FOR A SEVENTH CAUSE OF ACTION**  
**NEGLIGENT HIRING, SCREENING, RETENTION,**  
**SUPERVISION and TRAINING**

85. Plaintiffs repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
86. Defendant **THE CITY OF NEW YORK** negligently hired, screened, retained, supervised and trained Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** and its employees.
87. A timely Notice of Claim was filed by Plaintiff.
88. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A EIGHTH CAUSE OF ACTION**  
**NEGLIGENT INFLICTION OF EMOTIONAL HARM**

89. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
90. Defendants **THE CITY OF NEW YORK and POLICE OFFICERS JOHN DOE #1-2** negligently caused emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of emotional injury to Plaintiffs and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
91. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A NINTH CAUSE OF ACTION**  
**VIOLATION OF SUBSTANTIVE DUE PROCESS**  
(Violations of 42 USC § 1983, The Due Process Clause of the United States Constitution, the  
14<sup>th</sup> Amendment, the New York State Constitution)

92. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as thought fully stated herein.
93. Defendants, individually and collectively are liable pursuant to 42 U.S.C. § 1983 for abuses against Plaintiff that shock the conscience in violation of the Fourteenth Amendment to the United States Constitution.
94. Defendants, individually and collectively are liable for abuses against Plaintiff that shock the conscience in violation of Article 1, § 5 of the New York State Constitution.
95. Plaintiff was denied the minimal civilized measures of life's necessities.
96. Plaintiff was exposed to unprovoked use of force, assault and battery.
97. There was intent to do harm without justification in that even after learning about their error, individual Defendants continued unconstitutional use of force against Plaintiff. The use of process was in a manner to obtain a collateral objective detailed *infra* in Plaintiff's claim for *Monell* Liability.<sup>1</sup>
98. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**AS AND FOR A TENTH CAUSE OF ACTION**  
**DEPRIVATION OF RIGHTS UNDER THE**  
**UNITED STATES CONSTITUTION AND 42 U.S.C. § 1983**  
**BY THE CITY OF NEW YORK**  
**CLAIM FOR *MONELL* LIABILITY**

99. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

---

<sup>1</sup> "A claim to recover damages for abuse of process cannot be based on the mere commencement of an action by summons and complaint, without unlawful interference with person or property" (Island Fed. Credit Union v. Smith, 60 A.D.3d 730, 875 N.Y.S.2d 198). All three elements must be established in order to have a cause of action for abuse of process (see *id.*; see also Mago v. Singh, 47 A.D.3d 772, 851 N.Y.S.2d 593 [a counterclaim failed because it failed to allege "any actual misuse of the process to obtain an end outside its proper scope"] ). In order for a party to bring a claim for abuse of process, three elements must be met: (1) there must be "regularly issued process, either civil or criminal;" (2) there must be "an intent to

100. At all times material to this complaint, Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICERS JOHN DOE #1-2** had in effect actual and/or *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
101. At all times material to their complaint, Defendant **POLICE OFFICERS JOHN DOE #1-2** had in effect and/or *de facto* policies, practices, customs and usages of failing to properly train, screen, supervise and discipline employees and police officers, and of failing to inform the individual Defendants' supervisors of the need to train, screen, supervise and discipline said Defendants. The policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.
102. Defendant **THE CITY OF NEW YORK** acting through its police department and through Defendants **POLICE OFFICERS JOHN DOE #1-2** being aware that such lack of training, screening, supervision, and discipline leads to improper conduct, acted with deliberate indifference in failing to establish a program of effective training, screening, supervision and discipline. Defendant **THE CITY OF NEW YORK** being aware that the persistent and substantial risk of improper detention of persons based upon insufficient or incorrect information, and effective training, screening, supervision and discipline would lessen the likelihood of such occurrences. These are recurrent circumstances which involve such potential danger to the constitutional rights of citizens, more specifically Plaintiff and which are officially tolerated by Defendant **THE CITY OF NEW YORK**. Such policies, practices, customs or usages were a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the harm/damages alleged herein, in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
103. The existence of the above-described *de facto* unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making

---

do harm without excuse or justification;" and (3) there is a "use of the process in a perverted manner to obtain a collateral

officers and Police Officers and defendant **THE CITY OF NEW YORK**, including but not limited to the NYPD.

104. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of **THE CITY OF NEW YORK's** NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the correction officers come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part *infra*, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.
105. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
106. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD, and to require compliance with the Constitution and laws of the United States.
107. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the NYPD, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through

---

objective” (*Curiano v. Suozzi*, 63 N.Y.2d 113, 480 N.Y.S.2d 466, 469 N.E.2d 1324).

- their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.
108. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to use force and assault Plaintiff without probable cause.
  109. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
  110. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their employees, agents and representatives of NYPD.
  111. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical, psychological and emotional injuries and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.
  112. In this case, there was: Police withholding evidence and/or misrepresenting or falsifying evidence; overall inadequate police work and inadequate prosecutorial work-up of the case; and permitting and/or enforcing false arrest and placing Plaintiff in unsafe and unconstitutional conditions of confinement.
  113. The acts complained of were carried out by the aforementioned defendants in their capacities as officers pursuant to customs, policies, usages, practices, procedures and rules of the City, NYPD, all under the supervision of higher-ranking representatives, employees and/or agents of the NYPD.
  114. The aforementioned customs, practices, procedures and rules of the City and NYPD include, but

are not limited to: 1) arresting persons known to be innocent in order to meet “productivity goals”; 2) falsely swearing out criminal complaints and/or lying and committing perjury during sworn testimony to protect other officers and meet productivity goals; 3) failing to supervise, train, instruct and discipline police officers thereby encouraging their misconduct and exhibiting deliberate indifference towards the constitutional rights of persons within the officers’ jurisdiction; 4) discouraging police officers from reporting the corrupt or unlawful acts of other officers; 5) retaliating against officers who report police misconduct; and 6) failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented with proper supervision.

115. At the time of the aforementioned constitutional violations, **THE CITY OF NEW YORK** and NYPD were and had been on notice of such unconstitutional conduct, customs, and de facto policies, such that the failure of City and NYPD to take appropriate remedial action amounted to deliberate indifference to the constitutional rights of persons with whom the police come in contact. In light of the extensive pattern of well-settled, pervasive customs and policies causing constitutional violations, documented in part infra, the need for more effective supervision and other remedial measures was patently obvious, but **THE CITY OF NEW YORK** and NYPD made no meaningful attempt to prevent future constitutional violations.

116. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented by the following civil rights actions and parallel prosecutions of police officers:

a) Colon v. City of New York, 9-CV-0008 (JBW)(E.D.N.Y) (in an Order dated November 29, 2009 denying the City’s motion to dismiss on Iqbal/Twombly grounds, wherein the police officers at issue were and prosecuted for falsifying evidence, the Honorable Jack B. Weinstein wrote:

‘Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration— through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some

evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.'

b) McMillan v. City of New York, 04-cv-3990 (FB)(RML) (E.D.N.Y.)(officers fabricated evidence against an African-American man in Kings County and initiated drug charges against him, despite an absence of an quantum of suspicion);

c) Richardson v. City of New York, 02-CV-3651 (JG)(CLP) (E.D.N.Y.)(officers fabricated evidence including knowingly false sworn complaints, against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion).

117. The existence of the aforesaid unconstitutional customs and policies, specifically with regard to "productivity goals," may be further inferred from the following: Deputy Commissioner Paul J. Browne has repeatedly admitted that NYPD commanders are permitted to set "productivity goals."<sup>2</sup>

118. The existence of the aforesaid unconstitutional customs and practices, specifically with regard to the failure to supervise, train, instruct, and discipline police officers, encouraging their misconduct, and exhibiting deliberate indifference towards the constitutional rights of persons with whom officers come into contact are further evidenced, inter alia, by the following:

a) In response to the Honorable Judge Weinstein's ruling of November 25, 2009 in Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noticed a "widespread... custom or policy by the city approving illegal conduct" such as lying under oath and false swearing, NYPD Commissioner Raymond Kelly acknowledged, "When it happens, it's not for personal gain. It's more for convenience."

b) Regarding Defendant City's tacit condonement and failure to supervise, discipline or provide remedial training when officers engage in excessive force, the Civilian Complaint Review Board is a City agency, allegedly independent of the NYPD, that is responsible for investigating and issuing findings on complaints of police abuse and misconduct. When it does, however, Commissioner Kelly controls whether the NYPD pursues the matter and he alone has the authority to impose discipline on the subject officer(s). Since 2005, during Kelly's tenure, only one quarter of officers whom the CCRB found engaged in misconduct received punishment more severe than verbal "instructions." Moreover, the number of CCRB-substantiated cases that the NYPD has simply dropped (i.e., closed without action or discipline) has spiked from less than 4% each year between 2002 and 2006, to 35% in 2007, and approximately 30% in 2008. Alarming, the NYPD has refused to prosecute 40% of the cases sent to it by the CCRB in 2009. As a result, the percentage of cases where the CCRB found misconduct but where the subject officers were given

---

<sup>2</sup> Jim Hoffer NYPD Officer claims pressure to make arrests WABC-TV Eyewitness News, March 22 2010, available at <http://abclocal.go.com/Wabc/story?section=news/investigators&id=73053S6> ("Police Officers like others who receive compensation are provided productivity goals and they are expected to work").

only verbal instructions or the matter was simply dropped by the NYPD rose to 66% in 2007. Substantiated complaints of excessive force against civilians accounted for more than 10% of the cases that the NYPD dropped in 2007 and account for more than 25% of cases dropped in 2008.<sup>3</sup>

119. The existence of the above-described de facto unlawful policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officers and officials of the NYPD and defendant **THE CITY OF NEW YORK**, including without limitation, the Police Commissioner.
120. All of the foregoing acts by defendants deprived Plaintiff of his federally protected rights, including, but limited to, the constitutional rights enumerated herein.
121. Defendant **THE CITY OF NEW YORK** knew or should have known that the acts alleged herein would deprive Plaintiff of his rights under the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution.
122. Defendant **THE CITY OF NEW YORK** is directly liable and responsible for the acts of Defendants, as it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulations of the City and NYPD and to require compliance with the Constitution and laws of the United States.
123. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and **THE CITY OF NEW YORK**, including the Commissioner, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in the City of New York.

---

<sup>3</sup> Daily News, Editorial: City Leaders Must Get Serious About Policing the Police, August 20, 2008.

124. The aforementioned Defendant's **THE CITY OF NEW YORK** policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned City policies, practices and/or customs, Defendants felt empowered to use malicious force and assault Plaintiff, making blatant violations of Plaintiff's constitutional rights.
125. Pursuant to the aforementioned **THE CITY OF NEW YORK** policies, practices and/or customs, the employees, representatives and/or agents failed to intervene in or report Defendants' violations of Plaintiff's rights.
126. Plaintiff's injuries were a direct and proximate result of the defendant **THE CITY OF NEW YORK**'s wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant **THE CITY OF NEW YORK** to properly supervise, train and discipline their agents, employees, or representatives.
127. There is a clear causal connection between the actions of **THE CITY OF NEW YORK** and the constitutional violations in this case. Here, **THE CITY OF NEW YORK** caused and is implicated in the constitutional violations and thus, should be held liable for the unconstitutional actions taken by the police officers.
128. Here, it is clear that **THE CITY OF NEW YORK** took action by their hiring and retention, which is sufficient to expose them to liability. *Amnesty America v. Town of West Hartford*, 361 F3d 113, 125 (2d Cir. 2004).
129. Upon information and belief, **THE CITY OF NEW YORK** was on notice that these policies were being unconstitutionally applied by inadequately trained medical staff and consciously has chosen not to train them or hire staff more adequate. *City of Canton, Ohio v. Harris*, 489 US 378 at 387.
130. By being aware of the medical staff's unconstitutional actions and consciously ignoring them, this in turn can mean that **THE CITY OF NEW YORK** ratified the defendants' actions. *See, Sorluco v.*

*New York City Police Dept.*, 971 F2d 864, 870-871 (2d Cir. 1992) (municipality lies where the subordinate's misconduct is "so manifest, as to imply the constructive acquiescence of senior policymaking officials").

131. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered specific physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and was otherwise damaged and injured.

**WHEREFORE**, Plaintiff **LEON CHRISTIAN** demands judgment against Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York  
January 6, 2017

Yours, etc.



---

Ellie A. Silverman, Esq.

**NOVO LAW FIRM, PC**

*Attorneys for Plaintiff*

**LEON CHRISTIAN**

299 Broadway, 17th Floor

New York, New York 10007

212-233-6686

**Our File No. 16-5605**

**ATTORNEY'S VERIFICATION**

**ELLIE A. SILVERMAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at **NOVO LAW FIRM, PC**, attorneys of record for Plaintiff **LEON CHRISTIAN**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

Dated:           New York, New York  
                  January 6, 2017



Ellie A. Silverman, Esq.

*Index No.:* \_\_\_\_\_/2016

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

---

LEON CHRISTIAN,

*Plaintiff,*

-against-

THE CITY OF NEW YORK AND POLICE OFFICERS JOHN DOE #1-2 (the name "John Doe" being fictitious as the true names are presently unknown), individually and in their official capacity as New York City Police Officers,

*Defendants.*

---

## SUMMONS AND VERIFIED COMPLAINT

---

**NOVO LAW FIRM, P.C.**

*Attorneys for Plaintiff*

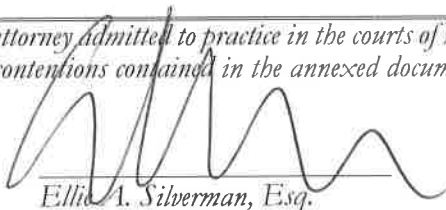
**LEON CHRISTIAN**

299 Broadway, 17<sup>th</sup> Floor  
New York, New York 10007  
(212) 233-6686  
Fax (212) 233-6687

---

*Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.*

*Dated: January 6, 2017*



*Ellic A. Silverman, Esq.*

---

TO:

1. **THE CITY OF NEW YORK**, 100 Church Street, New York, New York 10007